

10. 9:00 AM CASE NUMBER: C24-02065

CASE NAME: MARIA ADRIANO VS. ANGELA GERALDI

*HEARING ON MOTION IN RE: SUBSTITUTE EDWIN F. RIVERA IN PLACE OF DECEASED PLAINTIFF,
ANA MATILDE VASCONCELOS VDA DE SANCHEZ

FILED BY: ADRIANO, MARIA LUZ

TENTATIVE RULING:

Plaintiff ANA MATILDE VASCONCELOS VDA. DE SANCHEZ ("Decedent") by and through her successor-in-interest, EDWIN F. RIVERA ("Successor-in-Interest") filed a Motion to Substitute the Successor-in-Interest in place of the Decedent plaintiff as a party herein on or about September 24, 2025 (the "Motion to Substitute"). The Motion to Substitute was set for hearing on February 9, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id.*

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Edwin F. Rivera filed as part of the Motion to Substitute, ¶¶2-7.

Disposition

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. Moving party to prepare the proposed form of order.

11. 9:00 AM CASE NUMBER: C24-02786

CASE NAME: KRISTOPHER BATEMAN VS. DOES 1 TO 50 INCLUSIVE

*HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 3/12/25

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

Plaintiff Kristopher Bateman ("Plaintiff") filed two motions to quash subpoenas [(1) a Motion to Quash